

MILITARILY CRITICAL TECHNICAL DATA AGREEMENT <i>(Please read Agency Disclosure Notice and Instructions on back before completing this form.)</i>			OMB No. 0704-0207 OMB approval expires 20220531		
MAIL THE ORIGINAL, COMPLETED FORM AND A COPY OF YOUR COMPANY'S INCORPORATION CERTIFICATE, STATE/ PROVINCIAL BUSINESS LICENSE, SALES TAX IDENTIFICATION FORM OR OTHER DOCUMENTATION WHICH VERIFIES THE LEGITIMACY OF THE COMPANY TO:					
U.S./CANADA JOINT CERTIFICATION OFFICE DLA LOGISTICS INFORMATION SERVICE FEDERAL CENTER, 74 WASHINGTON AVE., NORTH BATTLE CREEK, MI USA 49037-3084					
1. TYPE OF SUBMISSION <i>(X one)</i>		a. INITIAL SUBMISSION		b. REVISION	
				c. 5-YEAR RENEWAL	
2. ENTERPRISE OR INDIVIDUAL DATA <i>(Referred to as a "certified contractor" upon acceptance of certification by the U.S./Canada - JCO)</i>					
a. NAME <i>(Name of Enterprise or Individual)</i>			b. ADDRESS <i>(Physical address, including P.O. Box if applicable)</i>		
c. NAME OF SUBSIDIARY/DIVISION/DEPARTMENT					
d. CAGE CODE <i>(Mandatory for Enterprise)</i>					
3. DATA CUSTODIAN					
a. NAME <i>(See Instructions)</i>			b. TELEPHONE NUMBER <i>(Primary Company Number preferred - include area code)</i>		
c. TITLE			d. E-MAIL ADDRESS		
4. DESCRIPTION OF RELEVANT BUSINESS ACTIVITY <i>(Print or type)</i>					
5. AS A CONDITION OF RECEIVING MILITARILY CRITICAL TECHNICAL DATA, THE ENTERPRISE OR INDIVIDUAL CERTIFIES THAT:					
a. CITIZENSHIP/RESIDENCY STATUS. The individual designated by name in Item 3, who will act as custodian of the militarily critical technical data on behalf of the contractor, is a citizen or person admitted lawfully for permanent residence into: <i>(X (1) or (2))</i>			d. They will not provide access to militarily critical technical data to persons other than their employees or eligible persons designated by the registrant to act on their behalf unless such access is permitted by U.S. DoDD 5230.25, Canada's TDCR, or by the U.S. or Canadian Government agency that provided the technical data.		
☐ (1) THE UNITED STATES ☐ (2) CANADA					
b. The data are needed to bid or perform on a contract with any agency of the U.S. Government or the Canadian Government or for other legitimate business activities in which the contractor is engaged, or plans to engage.			e. No person employed by the enterprise or eligible persons designated by the registrant to act on their behalf, who will have access to militarily critical technical data, is disbarred, suspended, or otherwise ineligible to perform on U.S. or Canadian Government contracts or has violated U.S. or contravened Canadian export control laws or has had a certification revoked under the provisions of U.S. DoDD 5230.25 or Canada's TDCR.		
c. They (1) acknowledge all responsibilities under applicable U.S. export control laws and regulations (including the obligation, under certain circumstances, to obtain an export license from the U.S. Government prior to the release of militarily critical technical data within the United States) or applicable Canadian export control laws and regulations, and (2) agree not to disseminate militarily critical technical data in a manner that would violate applicable U.S. or Canadian export control laws and regulations.			f. They are not themselves debarred, suspended, or otherwise ineligible to perform on U.S. or Canadian Government contracts, and have not violated U.S. or contravened Canadian export control laws, and have not had a certification revoked under the provisions of U.S. DoDD 5230.25 or Canada's TDCR.		
6. CONTRACTOR CERTIFICATION					
I certify that the information and certifications made by me are true, complete, and accurate to the best of my knowledge and belief and are made in good faith. I understand that a knowing and willful false statement on this form can be punished by fine or imprisonment or both. <i>(For U.S. contractors see U.S. Code, Title 18, Section 1001 and for Canadian contractors see the Defense Production Act.)</i>					
a. TYPED NAME <i>(LAST, First, Middle Initial)</i>		b. TITLE		d. SIGNATURE <i>(See instructions)</i>	
				e. DATE	
7. CERTIFICATION ACTION <i>(For JCO Use Only)</i>					
a. CERTIFICATION ACCEPTED. This certification number, along with a statement of intended data use, must be included with each request for militarily critical technical data.			b. NUMBER		c. EXPIRATION DATE
8. DOD OFFICIAL			9. CANADIAN OFFICIAL		
a. TYPED NAME <i>(LAST, First, Middle Initial)</i>			a. TYPED NAME <i>(LAST, First, Middle Initial)</i>		
b. TITLE			b. TITLE		
d. SIGNATURE <i>(See instructions)</i>		e. DATE	d. SIGNATURE <i>(See instructions)</i>		e. DATE

INSTRUCTIONS FOR COMPLETING DD FORM 2345

AGENCY DISCLOSURE NOTICE

The public reporting burden for this collection of information, 0704-0207, is estimated to average 20 minutes per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing the burden, to the Department of Defense, Washington Headquarters Services, at whs.mc-alex.esd.mbx.dd-dod-information-collections@mail.mil. Respondents should be aware that notwithstanding any other provision of law, no person shall be subject to any penalty for failing to comply with a collection of information if it does not display a currently valid OMB control number.

SPECIFIC INSTRUCTIONS

1. Mark only one box. Mark "REVISION" (of a previously accepted submission) to show revised information, such as addresses or business description. Mark "5-YEAR RENEWAL" in response to a renewal notice from U.S./Canada - JCO. When either the "REVISION" OR "5-YEAR RENEWAL" box is marked, enter your current Certification Number in Item 7.b.

2.a. For an enterprise, show full name of corporate parent; or institution. For an individual, show full name (LAST, First, Middle Initial).

b. Enter the physical mailing address of the enterprise or individual making the certification. If a P.O. Box is used for mailing purposes, include street address as well.

c. Each corporate subsidiary or division that is to receive militarily critical technical data must be certified separately, each with a unique CAGE Code. If not applicable, so state.

3. Show the name, business telephone number (including area code - general company number preferred), title of the individual and their e-mail address who will receive militarily critical technical data and be responsible for its further dissemination.

4. Describe the business activity of the entity identified in Item 2 in sufficient detail for the U.S. or Canadian Government agency controlling the data to determine whether the militarily critical technical data that you may request from time to time are reasonably related to your stated business activity. For example, state that you design and construct high-pressure, high volume hydraulic pumps for use in connection with aircraft control surfaces; do not state simply "hydraulic pumps." Provide concise statements within the space provided.

5. If certifications 5.e. and 5.f. cannot be made, provide (on a separate sheet) a description of any extenuating circumstances that may give sufficient reason to accept your certification.

5.a. If the location of the entity identified in Item 2.a. is in the United States, the individual named in Item 3 must be a U.S. citizen or a person admitted lawfully for permanent residence into the United States. If the location of the entity is in Canada, the individual named in Item 3 may be either a Canadian or U.S. citizen or a person admitted lawfully for permanent residence into Canada.

6. If Item 2 identifies an individual, that individual must sign. **If Item 2 identifies an institution or a corporate entity, a person who can legally obligate the enterprise to a contract must sign. Digital signatures are NOT acceptable.**

7. CERTIFICATION ACTION.

a. ACCEPTED. The U.S./Canada - JCO has assigned the enterprise or individual identified in Item 2.a., a Certification Number which will identify the individual or enterprise as a "certified contractor" as defined in U.S. DoDD 5230.25 or Canada's TDCR. The acceptance is valid for a period of five years from the acceptance date unless sooner revoked under the provisions of U.S. DoDD 5230.25 or Canada's TDCR. If at any time a certified contractor is unable to adhere to the conditions under which a certification was accepted, the contractor's certification is considered void, and the contractor will either submit a revised certification or surrender all militarily critical technical data obtained under this agreement to the data controlling offices specified on the documents.

b. NUMBER. Certification Number (assigned by the JCO).

c. EXPIRATION DATE. Date Certification Number will expire (assigned by the JCO).

LEGEND:

DoD = Department of Defense

DoDD = Department of Defense Directive

U.S./Canada - JCO = United States/Canada Joint Certification Office

TDCR = Technical Data Control Regulations

Militarily Critical Technical Data = Unclassified technical data as governed by U.S. DoDD 5230.25 or Canada's TDCR.